



A COMMUNITY OF CHOICE

Planning and Development Department

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MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Mark Christensen, Planner II
Subject: PLN-21-00002 – Lot Coverage Increase
Date: April 21, 2021

Background:

The item for consideration is a **UDC Text Amendment**. This is approved by **Ordinance**.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 4/26/2021
- Public Services Committee 5/04/2021
- 2nd reading 5/10/2021
- Public Services Committee 5/18/2021
- Third and final reading 5/24/2021

Planning Commission Recommendation:

The Planning Commission heard this item at their April 19, 2021 meeting and **unanimously** to recommend the Governing Body approve this application.

The Planning Commission Staff report is attached and has not been changed.

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE AMENDING THE UNIFIED DEVELOPMENT CODE (UDC) TO INCREASE THE TOTAL LOT COVERAGE OF THE MD1, MD2, P-CV1, P-CV2, AND P-CV3 LOT TYPES TO 80%.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the Governing Body of the City of Cheyenne finds that the text amendment that is the subject of this ordinance meets the criteria specified in Section 2.4.1.d of the UDC.

Section 2. That the intent of this text amendment is to promote water conservation and sustainable development.

Section 3. That on April 19, 2021 the Planning Commission conducted a public hearing, reviewed the proposed text amendment, and recommended approval of said text amendment.

Section 4. That Section 5.1.5.d lot type MD1 and lot type MD2 be amended to allow a Total Lot Coverage (max.) of 80% and the UDC graphic be modified to reflect the amendment.

Section 5. That Section 5.6.1.d lot type P-CV1, P-CV2 and P-CV3 be amended to allow a Total Lot Coverage (max.) of 80% and the UDC graphic be modified to reflect the amendment.

Section 6. The aforementioned Section of the UDC is hereby amended as set out within this ordinance and sections currently existing within the UDC not set out within this ordinance remain unchanged.

Section 7. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 8. That this ordinance shall be in full force and effect upon approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)
ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____
Wyoming Tribune Eagle



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PLANNING COMMISSION

April 19, 2021

STAFF REPORT

REQUEST: A Text Amendment amending the Unified Development Code of the City of Cheyenne, Wyoming, to increase permitted lot coverage for multi-dwelling and civic building lot types.

CASE NUMBER: PLN-21-00002

PREPARED BY: Mark Christensen, Planner II, Planning and Development

RECOMMENDED MOTION:

Move to recommend the Governing Body **approve** text amendments to the Unified Development Code to increase maximum permitted lot coverage to 80% for the MD1, MD2, P-CV1, P-CV2, and P-CV3 lot types as outlined in this staff report and recommended by staff, noting the request meets the review criteria of UDC 2.4.1.d.

BACKGROUND:

The City's Unified Development Code (UDC) was adopted by the Governing Body on January 23, 2012, by Ordinance Number 3943 with an effective date of April 30, 2012. The Unified Development Code is the regulatory document carrying out the vision of Plan Cheyenne, and is reviewed annually pursuant to UDC 1.1.7 [Annual Review Requirement] to determine if any particular standard or regulation is timely, relevant and adequately addresses current market conditions. In addition to the annual review, the Planning and Development Director and City Engineer are authorized under UDC 2.4.1.b.3 to bring forward text amendments on their own initiative.

For each lot type contained within the Unified Development Code there is a total lot coverage determined. The maximum total lot coverage is important as it not only determines how much non-permeable surface is permitted on any given lot, but also prescribes the amount of landscaping required. The lower the percentage specified for total lot coverage, the more landscaping the lot is required to have. Staff has determined that more required landscaping has been detrimental to multi-family development within the community. Requiring more landscaping and less lot coverage on multi-family lots results in developments being less dense, more water intensive, and more expensive. Furthermore, staff has determined that requiring more landscaping on civic building lot types expends significant taxpayer dollars. Staff feels that increasing the maximum permitted lot coverage to 80% in the MD1, MD2, P-CV1, P-CV2, and P-CV3 will

allow developers to provide more units, increase water conservation, and allow for responsible stewardship of taxpayer revenue in the P District.

DISCUSSION:

Article 5 in the Unified Development Code outlines the Zoning Regulations for the City of Cheyenne. Each Zoning District allocates certain lot types that determine the permitted lot area, lot frontage, setbacks, maximum lot coverage, and building height for any given development that occurs in the District. Total lot coverage is based on a percentage of the lot area and is defined as:

The portion of the lot covered by the principal building, accessory building, and any structure or constructed element which impedes infiltration of stormwater into the ground or disrupts vegetated surfaces. For purposes of lot coverage standards, structures or constructed elements that allow some infiltration, such as decks, patios and driveways, porous pavers or concrete, or other elements that disturb or compact permeable ground cover shall be counted towards the total surface coverage. Required formal open spaces such as Plazas, Courtyards or Patios may be excluded from the coverage calculation when they are designed to infiltrate all run-off within the open space or site.

Essentially, the definition of total lot coverage is the total non-permeable surface on the lot. In addition to determining the non-permeable surface, the maximum total lot coverage also dictates the required landscaping on site. Landscaping is calculated for both required trees and required ground cover and non-tree landscape features. The formula is as follows (where landscape area is the inverse of the total lot coverage i.e. a lot coverage of 90% is required 10% landscape area):

$$\text{Required Landscaping} = (\text{Total Lot Area} \times \text{Landscape Area}) / 500$$

Staff has received feedback from the development community and has determined that the current maximum total lot coverage requirements for the MD1 and MD2 are difficult to implement for two reasons. First, it limits the buildable area of the development; thus, resulting in fewer units being built. This has an adverse effect on the housing supply in the community and contributes to reducing housing affordability with reduced supply. In order for developers to maximize development potential and deliver more units, they must build higher resulting in higher costs. Secondly, it is difficult for developers to meet landscaping requirements. A development under the current limitations of 60% lot coverage in the MD1 lot type developing an acre is required to provide between 23 and 34 trees, not including street trees. Furthermore, it is required to provide a combination of shrubs (.25 points), ground cover (.25-.75 points per 500 square feet), and grasses (1 point) to total 34.8 landscaping points. This amount of landscaping is not only expensive, but also requires significant water resources. The same issues emerge for landscaping in the P (Public District) for the P-CV1, P-CV2, and P-CV3 lot types; except for in these situations it is taxpayer funded agencies utilizing large amounts of water and paying for high landscaping costs.

The solution staff has crafted for the situation is increasing the permitted maximum lot coverage to 80% in the MD1, MD2, P-CV1, P-CV2, and P-CV3 lot types. In the situation illustrated in the previous paragraph, the same development of an acre for the MD1 lot type will be required between 11 to 17 trees and landscaping points to total 17.4. In addition to the reduced landscaping, the developer will also be able to develop more of the site and potentially provide additional units. In the P-CV3 lot type with a development of 5 acres, which many school developments fall into, it decreases potential tree requirements from a range of 145 to 217 down to 58 to 87. Staff is confident that the amendment will

provide the necessary landscaping to ensure the site is not only aesthetically pleasing, but also maintain fiscal and environmental responsibility.

PROPOSED AMENDMENTS:

The proposed amendments include increasing the permitted lot coverage for the MD1, MD2, P-CV1, P-CV2, and P-CV3 lot types to 80%. These amendments are shown on the following tables:

TYPE MD1: MULTI-DWELLING BUILDING / LARGE LOT			
Lot Area (min.)		20,000 square feet	
Lot Frontage (min.)		150'	
Setbacks: Principal Building (min.)	Front	30'	
	Side	15'	
	Rear	30' on street side corner lots	
Setbacks: Accessory Building (min.)	Front	10' behind front building line	
	Side	15'	
	Rear	10'	
Density (max.)		1 dwelling / 2,000 square feet	
Total Lot Coverage (max.)		-60% 80%	
Building Height	Principal	2 to 3 stories	
	Accessory	Up to 5 stories with conditional review	
Zoning Districts		Permitted: NR-3 Conditional: MR, HR, NR-2	

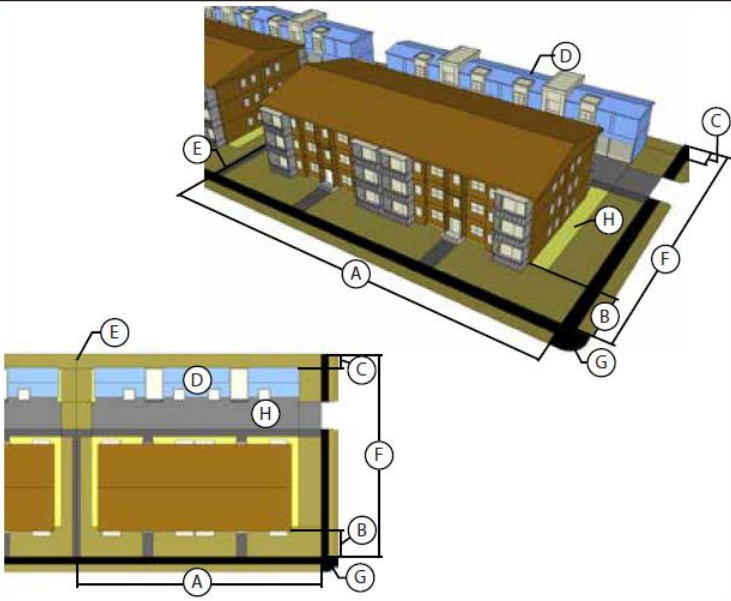


Figure 1: MD1 Lot Type

TYPE MD2: MULTI-DWELLING BUILDING / STANDARD LOT			
Lot Area		9,000 – 19,999 square feet	
Lot Frontage		80' – 150'	
Setbacks: Principal Building (min.)	Front	10' – 20'	
	Side	5'	
	Rear	15' on street side corner lots 5' if alley loaded	
Setbacks: Accessory Building (min.)	Front	10' behind front building line	
	Side	5'	
	Rear	2' on street side corner lots 5' if alley loaded	
Density (max.)		1 dwelling / 1,600 square feet 1 dwelling / 1,000 square feet, if over 3 stories	
Total Lot Coverage (max.)		70% 80%	
Building Height	Principal	2 to 3 stories	
	Accessory	Up to 5 stories with conditional review	
Zoning Districts		Permitted: HR, NR-3, NR-2 Conditional: MR	

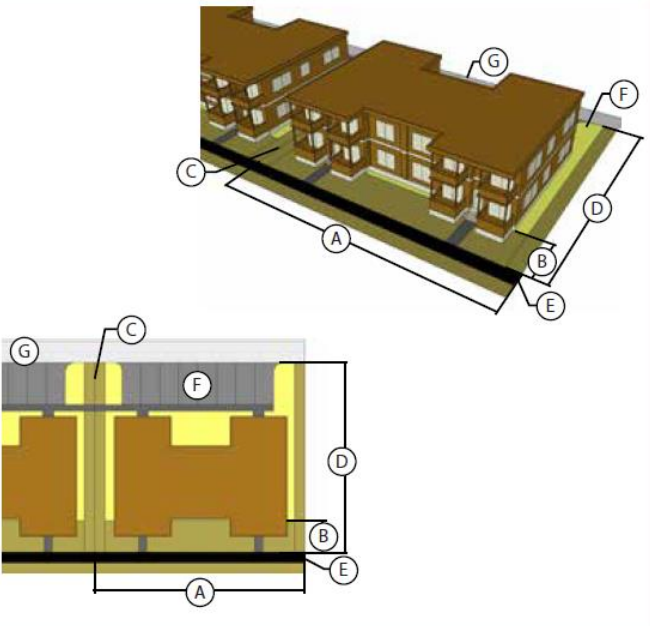


Figure 2: MD2 Lot Type

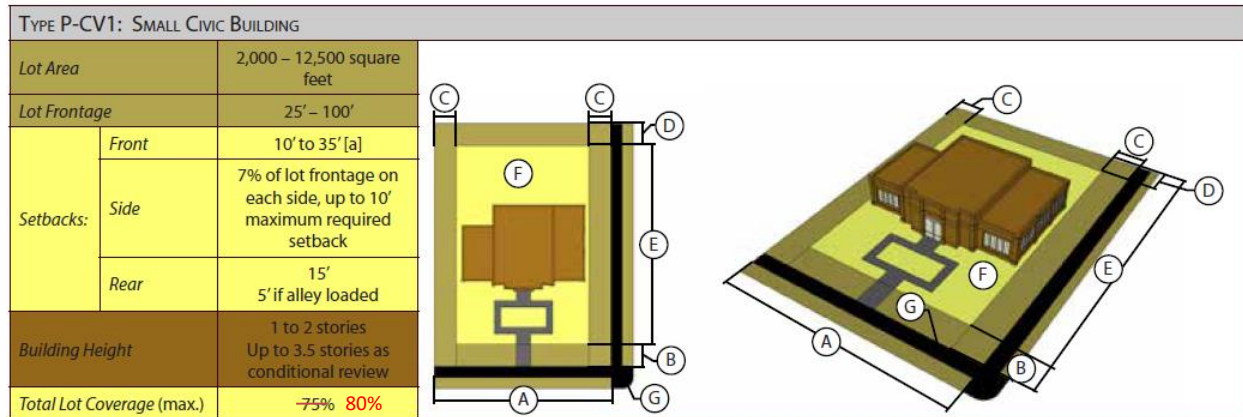


Figure 3: P-CV1 Lot Type

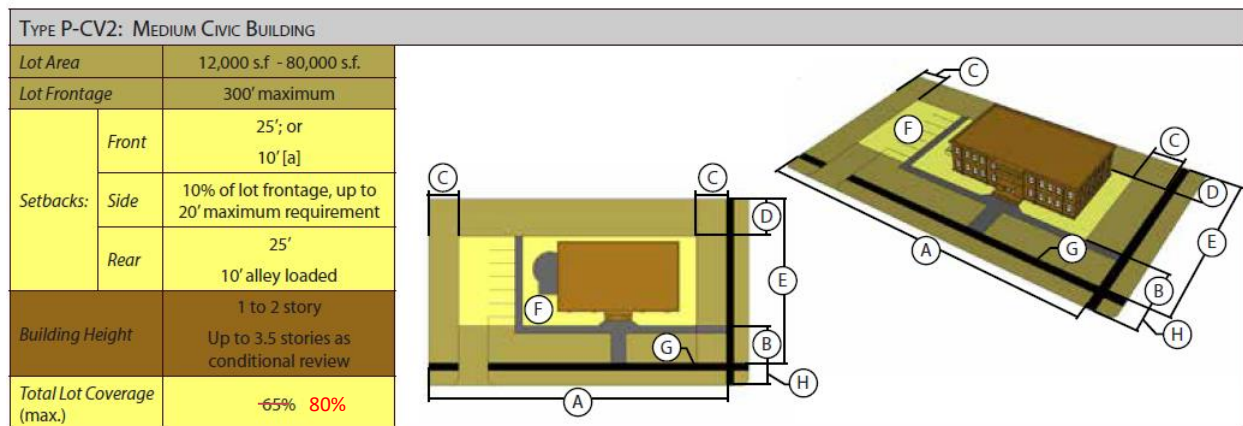


Figure 4: P-CV2 Lot Type

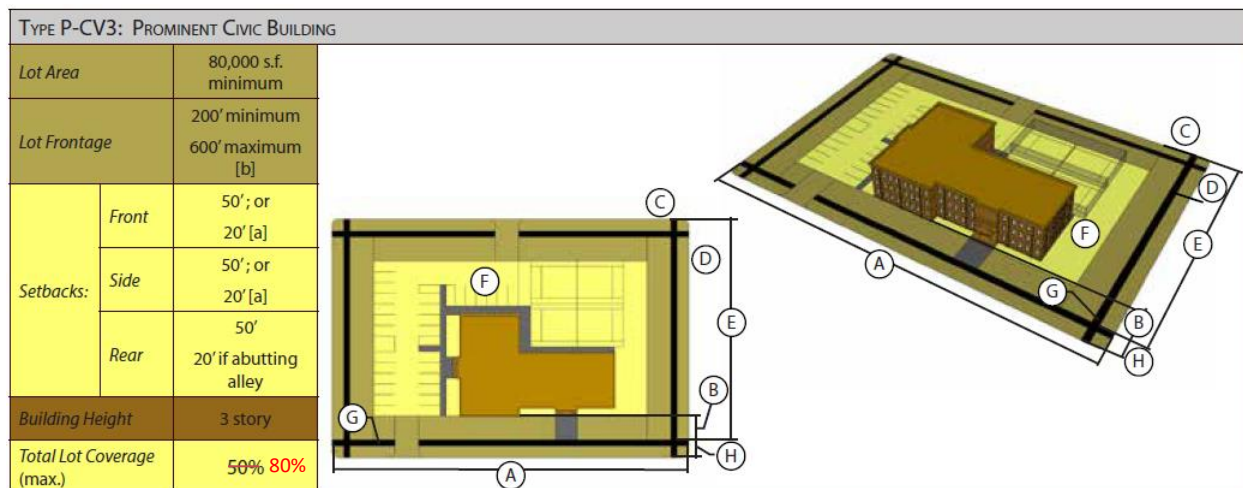


Figure 5: P-CV3 Lot Type

REVIEW CRITERIA:

Review of a UDC text amendment shall be measured by the following three (3) criteria of Section 2.4.1.d:

1. COMPREHENSIVE PLAN:

"The amendment is in accordance with general goals and policies of the Comprehensive Plan, or is necessary to address an emerging issue not anticipated in the Comprehensive Plan and is not inconsistent with the plan."

This proposed text amendment is consistent with the principles and policies within PlanCheyenne. Specifically, the proposed amendment addresses the following policies and principles:

- *Policy 2.5.A: Community housing needs met.*
Synopsis: Planning staff has received feedback from the development community that it is difficult to develop multi-dwelling housing with landscaping standards and building area limitations with current total lot coverage requirements. Increasing the maximum coverage to 80% will permit a larger variety of housing to be developed with more sustainable landscaping practices.
- *Policy 5.4.A: Water conservation.*
Synopsis: Reducing the required landscaping required in these areas, notably ground coverage, will promote water conservation in the City of Cheyenne.
- *Foundation 7: Developing in a Fiscally Responsible Way.*
Synopsis: By limiting the required water resources to irrigate landscaping on new public facilities in the P-Public District lot types, the City, County, State, and School District will be able to develop in a more fiscally responsible way.

2. STATE STATUTORY REQUIREMENTS:

The amendment is consistent with the Wyoming Statutes, and specifically the Municipal Planning and Zoning statutes. The following Articles are all listed verbatim from Wyoming State Statute.

WYO 15-1-602 (a): The governing body shall specify how regulations, restrictions and the district boundaries are to be determined, established, enforced, amended, supplemented or otherwise changed.

Assessment: State statute states that the governing body shall specify how regulations regarding zoning are established and enforced. The governing body possesses the authority to amend regulations and therefore can amend the *Unified Development Code* to reflect this text amendment.

WYO 15-1-601 (a): The governing body of any city or town, by ordinance, may:
(i) Regulate and restrict the:
(D) Density of the population
(E) Location and use of buildings, structures and land for trade, industry, residence or other purposes.

Assessment: This amendment proposes modifying the Unified Development Code for the purposes of regulating the location of buildings and density of the population; thus, fulfilling the requirements of this statute.

WYO 15-1-601(d): All regulations shall be made:

- (ii) With reasonable consideration, among other things, of the character of the district and its peculiar suitability for particular uses;
- (iii) With a view to conserving the value of buildings and encouraging the most appropriate use of land throughout the city or town.

Assessment: This amendment proposes modifying the Unified Development Code for the purposes of encouraging sustainable water practices suitable to the climate of the City of Cheyenne. Regulations of this nature are allowable under state statute and may be modified by the Governing Body.

3. HEALTH, SAFETY, AND PUBLIC WELFARE:

"The amendment promotes the general health, safety and public welfare."

This amendment will not adversely impact the general health, safety and public welfare of Cheyenne.

CONCLUSION:

Staff concludes that this text amendment meets the review criteria of UDC 2.4.1.d. Increasing the permitted lot coverage in the MD1, MD2, P-CV1, P-CV2, and P-CV3 lot types will promote water conservation, foster fiscal responsibility, and encourage more multi-dwelling housing development in the community. The amendments accomplish several policies within PlanCheyenne and are enabled by Wyoming State Zoning statutes. Lastly, increasing the housing supply while promoting water conservation will improve the overall health, safety, and welfare of the community.

STAFF RECOMMENDATION:

Staff recommends **approval** of text amendments to the Unified Development Code to increase permitted lot coverage for multi-dwelling and civic building lot types noting the request meets the review criteria of UDC 2.4.1.d.